

BNSS 2023 Warrantless Arrest Decision Tree

Formula: W • I • B (The WIB Decision Tree) | Subject: Criminal Law & BNSS

I. COGNITIVE FORMULA & MNEMONIC BREAKDOWN

- â€ [W] - Warrantless offences: Cognizable with punishment > 7 years (Mandatory Arrest power)
- â€ [I] - Investigation necessity: Offences <= 7 yrs require Sec 35(1) checklist (Prevent tampering, fleeing)
- â€ [B] - Bail status: Ifailable, right to bail must be communicated immediately without delay

II. PRACTICAL USAGE IN JUDICIAL EXAMINATIONS

Under BNSS Sec 35(3), if imprisonment is <= 7 years and accused appears pursuant to notice, arrest is prohibited unless reasons are recorded in writing.

III. FREQUENT PRELIMS & MAINS TRAPS TO AVOID

- â€ Always verify exceptions and statutory provisos before applying the direct formula.